

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING**

Special Verdict

Returned October 14, 2025

United States District Court for the Western District of North Carolina Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. Civil Action No. SYN-WDNC-24-CV-0520

The jury answered the Court's separate questions unanimously after receiving the admitted evidence and instructions. It found that the parties had an enforceable integrated shipment contract and that Granite Heron materially failed to perform the continuous-temperature and response obligations governing validation lot BE214-VL-2409A.

The jury further found that Granite Heron's breach was a proximate and foreseeable cause of compensable loss to Blue Ember. This answer addressed the September transport event, quality disposition, replacement consequences, and bounded delay evidence. It did not decide the later affirmative defense, which appeared in a separate question with a burden assigned to Granite Heron.

The form directed jurors not to reduce causation or gross-damages findings merely because they might later find avoidable loss. It likewise directed them not to use mitigation to revise the monitor curve or decide that Blue Ember should have released the original lot. Those structural instructions preserve the sequence of the answers.

Gross damages and mitigation answers

The jury found gross compensatory damages of 4.2 million dollars. Its itemized answers were 1.35 million dollars for the cost embodied in the rejected validation lot, 850,000 dollars for incremental replacement and associated expense, and two million dollars for bounded delay loss. The clerk verified that these three figures sum to the stated gross amount.

On Granite Heron's affirmative defense, the jury found that Blue Ember failed to take every reasonable step to reduce part of the caused delay. It fixed the net mitigation deduction at 300,000 dollars after considering the genuine Cobalt Finch capacity, unfinished BE-214 qualification, estimated alternative expense, compressed decision window, execution risk, and expected schedule benefit.

The form requested a net figure, not gross avoidance. Jurors were instructed to subtract reasonable incremental alternative cost before stating the deduction and to avoid reducing original-lot value merely because earlier replacement might shorten delay. The final arithmetic directed by the form is 4.2 million dollars less 300,000 dollars, producing 3.9 million dollars.

Certification of unanimous return

The foreperson announced each answer in open court on October 14, 2025. The Court polled the jurors at the parties' request, and each confirmed agreement. No inconsistency appeared between the liability, causation, gross-damages, and mitigation answers. The Court accepted the verdict and discharged the jury after explaining the obligation to preserve confidentiality about deliberations.

The separate findings mean the jury did not conceal a compromise inside one undifferentiated award. Liability and causation were resolved before the financial questions. Gross loss was itemized before the post-event deduction. The original-lot, replacement, delay, and mitigation values can therefore be identified without speculation about the arithmetic.

The verdict does not rule on posttrial motions, interest, costs, or the final form of judgment. It contains no finding that Cobalt Finch was fully qualified or that the full 1.5-million-dollar defense model was compelled. The signed original was filed by fictional courtroom clerk Avery Thorn at the direction of Judge Miriam D. Carver.